



COMPLAINT OR PETITION

IN THE STATE OF ILLINOIS, CIRCUIT COURT

This form starts a civil case.

COUNTY: DuPage

County Where You Are Filing the Case

PLAINTIFF/PETITIONER OR IN RE: Kira Benson

Who is starting the case.

First, Middle, and Last Name, or Business Name

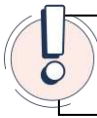
DEFENDANTS/RESPONDENTS: Metro Storage Partners LLC

Who the case is filed against.

First, Middle, and Last Name, or Business Name

Case Number

(Clerk fills in)



This general *Complaint or Petition* is used to start a civil case. See the *How To File a Complaint or Petition* instructions for more information: ilcourts.info/how-to-complaint.

A. PLAINTIFF/PETITIONER INFORMATION

The person or business starting the lawsuit is the Plaintiff/Petitioner. Add your information here.

1. I am the Plaintiff/Petitioner in this case. My name is:

Your First, Middle, and Last Name, or Business Name

2. I live in this county and state:

County & State Where You Live

B. DEFENDANT/RESPONDENT INFORMATION

The person or business you are suing is the Defendant/Respondent. Add their information here. You can list up to 3 people or businesses on this form. If you are suing more than 3 people or businesses, fill out and attach an Additional Defendant (Complaint or Petition) form.

I am suing:

Defendant: Metro Storage Partners LLC
First, Middle, and Last Name, or Business Name *County, State Where Person Lives or Business Located*

Defendant:
First, Middle, and Last Name, or Business Name *County, State Where Person Lives or Business Located*

Defendant:
First, Middle, and Last Name, or Business Name *County, State Where Person Lives or Business Located*

- ☐ I am suing more than 3 people or businesses in this lawsuit. I have filled out and attached the *Additional Defendant (Complaint or Petition)* form.

C. REASONS FOR LAWSUIT

Explain the facts and legal reasons for your lawsuit. Be specific and include names, dates, places, laws or rules that support your case, and any other important information. Use each numbered paragraph below to explain one issue or fact at a time. See the instructions for an example of how to organize your paragraphs.

If you are suing more than one Defendant/Respondent in this case, you must explain which facts and legal reasons apply to each Defendant/Respondent.

If your lawsuit is based on a written document, such as a contract, you must attach that document to this form.

1. Defendant disposed of plaintiff's stored furniture before the contractual delinquency period.

2.

3.

4.

5.

6.

7.

8.

☐ I need more space to explain, and I have filled out and attached an *Additional Reasons for Lawsuit* form.

☐ My lawsuit is based on a written document and I have attached a copy of that document to this *Complaint or Petition*.

D. WHAT YOU ARE ASKING FOR

Explain what you want the judge to do. This can include ordering the Defendant/Respondent to pay you money, give back your property, or do something else.

I am asking for an order that the Defendant/Respondent: *(check all that apply)*

☒ Pay me money. The total amount of money I am asking for is ☐ under \$50,000 ☐ over \$50,000.

I want the following amount of money: \$ 8,750.

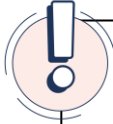
If you are asking for money, you must certify the amount under Illinois Supreme Court Rule [222](#) by checking one of the boxes above and signing this document. You do not have to attach a separate affidavit.

☐ Return tangible personal property (items in the Defendant/Respondent's possession) to me:

☒ Pay the costs of this lawsuit. *(This is calculated at the end of the case)*

☐ Do something else:

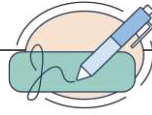
Write what you want the judge to order the Defendant/Respondent to do.
Pay damages and court costs.



If you want to request a trial with a judge and a jury (jury trial), you will also need to **fill out and file a separate *Jury Request* form**, available at ilcourts.info/jury-request.

A jury trial is not automatic. If you want a jury trial, you **must** file a *Jury Request* at the same time that you file the *Complaint or Petition*.

If you want a trial with a judge only (bench trial), do **not** file the separate *Jury Request* form.



Case Number _____

SIGN

Under Illinois Supreme Court Rule [137](#), my signature means that:

1) I read the document, 2) I have been informed and believe it is true and correct, and 3) I am not filing it to cause delay or for another bad reason.

If I am asking for money damages, then I certify that my Rule [222](#) statement in section D is true and correct, and I understand that making a false statement is perjury and has penalties provided by law under [735 ILCS 5/1-109](#).

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/ /s/ Kira Benson Print Name Kira Benson

☒ **I am completing this form for myself**

Phone Number _____ Email (if you have one) _____

Your Address 18 Juniper Lane, Wheaton, IL 60187
Street, Apt. # City State Zip Code

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____
Street, Apt. # City State Zip Code



WHAT'S NEXT

FOR PERSON FILLING OUT THIS FORM:

File your completed forms with the Circuit Clerk's office in the correct county. This is usually the county where any person or business you are suing lives or where the events that led to the case took place. Find your Circuit Clerk at ilcourts.info/clerks.



Learn more about each step in the process and how to file in the instructions:

ilcourts.info/how-to-complaint

After you file your *Complaint or Petition*, you will need to have the person you are suing served with the *Summons* and *Complaint or Petition*. Find more information on serving a *Summons* at ilcourts.info/how-to-summons.

FOR PERSON RECEIVING THIS DOCUMENT:

If you received a *Summons* with this document, review the *Summons* for information about how to respond to this lawsuit. For more information about going to court, including how to fill out and file forms, call or text **Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

If there are words or terms that you do not understand, **visit Illinois Legal Aid Online** at ilao.info/glossary. Find more information, resources, and the location of your local legal self-help center at ilao.info/lshc-directory